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Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

08/14/2026
Clerk of the Court
BY: ANNIE PASCUAL
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
Carbone, Smith & Koyama, LLP;
Michael R. Chambers;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
and DOES 1 through 20, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**OBJECTIONS TO
PROPOSED ORDER**

Hearing: September 8, 2026
Time: 9:00 a.m.
Dept.: 301

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure section 1005, subdivision (b); Code of Civil Procedure section 1010; California Rules of Court, rules 3.1110, 3.1113, and 3.1312; and Code of Civil Procedure section 425.16, subdivision (c), as applicable to the fee motion

1 opposed.

2 3. The Clerk’s authority to accept this paper is under Government Code sections 68150 and
3 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and
4 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court,
5 rules 2.118 and 2.119; this paper does not present any of those grounds.

6 4. The Court’s authority to consider the substance is under Code of Civil Procedure section
7 425.16, subdivision (c), and California Rules of Court, rules 3.1110, 3.1113, and 3.1312.

8 5. This paper is filed August 14, 2026, which is early and still timely under Code of Civil
9 Procedure section 1005, subdivision (b), and California Rules of Court, rule 3.1300, measured
10 from August 11, 2026 service of the motion set for September 8, 2026, 9:00 a.m., Department
11 301 (ROA-confirmed; Tx 80309587; DocIDs 10369670, 10369671, 10369673). Plaintiff
12 opposes the motion and does not concede a stipulated date. Plaintiff also preserves CRC
13 3.1312 objections from any later service of a proposed order after ruling.

14 Hearing: September 8, 2026, 9:00 a.m., Department 301 (ROA-confirmed; Tx 80309587; DocIDs
15 10369670 notice, 10369671 O’Connell declaration, 10369673 MPA; served August 11, 2026).
16 Plaintiff opposes the motion and does not concede a stipulated date. Hon. Christine Van Aken.
17 Case No. CGC-25-631801.

18 **I. INTRODUCTION**

19 Defendants lodged a [Proposed] Order that would, if signed in blank form: (1) grant the Motion
20 for Attorneys’ Fees and Costs; (2) leave blank the amount of attorneys’ fees awarded; and (3) leave
21 blank the amount of costs awarded.

22 Plaintiff objects to every operative paragraph as drafted and to any filling of the blanks with the de-
23 manded \$35,973.00 fees and \$1,137.46 costs without lodestar, scope, apportionment, and double-
24 recovery findings. Plaintiff also objects to any unstated add-on that would enter a judgment of
25 dismissal not shown on the register of actions, award costs twice (fee motion plus MC-010), or
26 recite that the motion was “unopposed” or that Plaintiff stipulated to the September 8, 2026 date
27 noticed by Defendants.

II. OBJECTIONS TO SPECIFIC PARAGRAPHS

OBJECTION TO PARAGRAPH 1 (“DEFENDANTS’ MOTION FOR ATTORNEYS’ FEES AND COSTS IS GRANTED”)

Grounds: The motion should be denied or reduced for the reasons in Plaintiff’s Opposition Memorandum (lodestar arithmetic mismatch; scope limited to the special motion to strike; cross-case duplication with CGC-25-631802; apportionment; duplicative costs). A blanket “GRANTED” line presupposes findings the Court has not made and that the moving papers do not support as to amount.

Request: Strike Paragraph 1; enter an order denying the motion, or granting only a reduced amount after express findings.

OBJECTION TO PARAGRAPH 2 (BLANK ATTORNEYS’ FEES AMOUNT)

Grounds:

1. **Blank invite.** Leaving “The amount of attorneys’ fees awarded totals: _____” without required lodestar findings invites an unsupported fill-in of \$35,973.00.
2. **No findings.** Any fee award under section 425.16(c) must reflect reasonable hours and rate after taxing non-anti-SLAPP work, block-billing, and cross-case duplication. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131-1134.)
3. **Arithmetic defect.** The O’Connell Declaration’s \$35,973.00 claim is not reconciled to Exhibit C’s face total.

Request: Strike Paragraph 2 as drafted; if any fees are awarded, require a specific amount supported by written lodestar findings, or enter \$0.

OBJECTION TO PARAGRAPH 3 (BLANK COSTS AMOUNT)

Grounds:

1. **Double recovery.** Defendants seek the same **\$1,137.46** in this fee motion and in a concurrent MC-010. (O’Connell Decl. para. 14.) Filling the blank with \$1,137.46 without addressing the MC-010 creates double recovery.
2. **Tax motion pending.** Plaintiff has separately noticed a Motion to Tax or Strike Costs under

1 CRC 3.1700(b). Costs should be denied in the fee order or deferred to that calendar.

2 3. **Allowability.** Item-level challenges to the \$1,064.95 filing/motion aggregation and \$72.51
3 service line remain unresolved.

4 **Request:** Strike Paragraph 3 as drafted; award \$0 costs in the fee order, or expressly defer costs to
5 the tax-motion calendar and state that no costs are awarded by this Order.

6 **OBJECTION TO ANY IMPLIED JUDGMENT OF DISMISSAL**

7 **Grounds:** The proposed order does not on its face enter a judgment of dismissal, but Plaintiff ob-
8 jects to any handwritten or later-inserted language entering dismissal judgment if no such judgment
9 appears on the ROA. Fee entitlement under section 425.16(c) does not require, and this proposed
10 order should not silently accomplish, entry of a judgment of dismissal.

11 **Request:** No judgment of dismissal shall be entered by this fee order.

12 **OBJECTION TO ANY “UNOPPOSED” / STIPULATED-DATE RECITAL**

13 **Grounds:** Plaintiff timely opposes. September 8, 2026, 9:00 a.m., Department 301 (ROA-confirmed;
14 Tx 80309587; DocIDs 10369670 notice, 10369671 O’Connell declaration, 10369673 MPA; served
15 August 11, 2026). Plaintiff opposes the motion and does not concede a stipulated date. Facial no-
16 tice from August 11, 2026 service may be adequate; that does not make the motion unopposed on
17 the merits or stipulated as to date.

18 **Request:** Strike any such recital if inserted in reply papers or at hearing.

19 **OBJECTION TO BLANK FURTHER-ORDER SPACE**

20 **Grounds:** Open-ended blanks invite relief not noticed, including security, sanctions, or dismissal
21 language.

22 **Request:** Limit any order to denial or to a reduced fee/cost determination with express findings;
23 enter Plaintiff’s counter [Proposed] Order.

24 **III. REQUEST**

25 Plaintiff requests that the Court sustain these objections, decline to sign Defendants’ [Proposed]
26 Order, and enter Plaintiff’s [Proposed] Order Denying or Reducing Fees and Costs lodged concur-
27 rently.

1 Dated: August 14, 2026

2 

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4 Plaintiff, In Pro Per

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